THE 2009 ENDANGERMENT FINDING — EXCERPT

Administrator's determination under the Clean Air Act, as published in 2009

Extract prepared for the frozen record. Paragraph numbering follows the published determination. Ellipses mark omitted material.

The determination

The Administrator determined that the atmospheric concentrations of six greenhouse gases — carbon dioxide, methane, nitrous oxide, hydrofluorocarbons, perfluorocarbons and sulphur hexafluoride — taken in combination, endanger both the public health and the public welfare of current and future generations, and that the combined emissions of these gases from new motor vehicles and new motor vehicle engines contribute to that atmospheric concentration.

Basis

The determination rested on the assessment literature then available and on the Administrator's evaluation of observed and projected effects, including effects on air quality, on food production and forestry, on water resources, on sea levels and coastal areas, on energy infrastructure and settlements, and on ecosystems and wildlife.

Legal consequence

The determination did not itself impose any obligation on any person. Its legal effect was to trigger the Administrator's duty to prescribe standards for the classes of vehicle and engine covered by the relevant provision of the Act.

This determination has been rescinded. See the final rule excerpt in this volume. The extract is retained in the record because the preemption authorities were decided while it was in force.